

SENATE BILL 1234

By Haile

AN ACT to amend Tennessee Code Annotated, Title 28,
Chapter 3; Title 39 and Title 40, relative to sexual
assault.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 28, Chapter 3, Part 1, is amended by
adding the following as a new section:

(a) Notwithstanding §§ 28-3-104 and 28-3-118, a civil action or an injury or
illness based on a sexual assault that occurred when the injured person was eighteen
(18) years of age or older and is barred as of July 1, 2025, because the applicable
period of limitation has expired, is hereby revived and action thereon may be
commenced not earlier than six (6) months after, and not later than two (2) years after
July 1, 2025.

(b) Dismissal of a previous action, ordered before July 1, 2025, on grounds that
the previous action was time-barred is not grounds for dismissal of a revival action
pursuant to this section.

(c) As used in this section, "sexual assault" means an offense involving rape, as
described in § 39-13-502, § 39-13-503, or § 39-13-534; sexual battery, as described in §
39-13-504, § 39-13-505, or § 39-13-527; or incest, as described in § 39-15-302.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.